Introduction to Board of Ethics Administrative Enforcement Proceedings

What is an administrative enforcement proceeding?

An administrative enforcement proceeding is like a court case, but instead of a judge, it is decided by the Board of Ethics with help from a Hearing Officer and General Counsel staff. This proceeding is happening because you and the Executive Director disagree about whether you have violated the law. You are called the Respondent in this case because you are expected to respond to the allegations against you.

Here are a few key terms you may hear used:

Party or Parties. You and the Executive Director are each a "party" in this case.

Pleadings. This is the legal term used for the Notice and your Response to the Notice.

Discovery. This is the exchange of information between the parties.

Hearing. A hearing is like a trial. During the hearing, each party gets a chance to explain their side of the story through documents and witness testimony.

Ex parte. This term means one-sided, and covers any communication that does not include both parties.

Adjudication or Administrative Adjudication. These are other terms you may hear used to describe the administrative enforcement proceeding.

Board Regulation No. 2 has more details about the administrative enforcement process, including the rules for pleadings, discovery, and hearings.

Is this a public proceeding?

An administrative enforcement proceeding is ***confidential*** and private unless you ask that it be made public. It stays confidential until the Board makes a decision. Once the Board decides the case, the written decision and all other documents that are officially part of the administrative enforcement proceeding will become public. You can decide at any point to make the proceeding public. Once you ask in writing for the proceeding be made public, it cannot go back to being a confidential proceeding.

Who is involved in this process?

Enforcement staff *(Executive Director, Enforcement Staff Attorneys)*. You have already interacted with Enforcement staff during their investigation. In an administrative enforcement proceeding, Enforcement staff members are the prosecution team. Their role is not neutral – their goal is to prove that you violated the law. Enforcement staff will present facts through documents and witnesses. They may also submit legal arguments explaining how they believe those facts show that you violated the law.

Compliance staff *(Director of Compliance & Administration, Investigative Analysts).* If your case involves one of the disclosure programs overseen by the Board (Financial Disclosure, Lobbying, or Campaign Finance), you may have interacted with Compliance staff. Compliance staff provides filing support for the disclosure programs and reviews filings. Compliance staff can resolve specific categories of violations under procedures approved by the Board. Compliance staff does not bring the enforcement action or present the case, but they may be involved in an investigation or enforcement proceeding when filings are alleged to be missing, late, or incomplete.

Board Members. The Board of Ethics has five members that were appointed by the Mayor and confirmed by City Council. The Board is the neutral decision-maker. The Board will review the evidence and decide whether the facts show that you violated the law. The Board will issue a written order explaining the law and facts that support its decision.

Hearing Officer. The Hearing Officer is an individual appointed by the Board to move the case through the pre-hearing process, hold a hearing, and help the Board reach a decision. The Hearing Officer is also neutral. The Hearing Officer advises and assists the Board, but does not make the final decision.

General Counsel staff *(General Counsel, Senior Staff Attorneys, Staff Attorneys)*. The Board's General Counsel and their staff advise and assist the Board and the Hearing Officer. General Counsel staff is neutral in this proceeding. General Counsel staff was not involved in the investigation. General Counsel staff may answer procedural questions but may not give legal advice. For example, they can explain how to file a document, but cannot tell you (or Enforcement staff) what legal arguments to make in that document.

What is the Notice of Administrative Enforcement Proceeding?

The Notice of Administrative Enforcement Proceeding is the first step in an administrative enforcement proceeding before the Board of Ethics. The Notice means that the Executive Director conducted an investigation and believes that have you violated the law. The Executive Director is now asking the Board to review the results of the investigation and decide whether the facts show that you violated the law.

I received the Notice of Administrative Enforcement Proceeding – now what?

There are a few key steps you need to take if you received the Notice:

(1) Attend the Preliminary Status Conference once it is scheduled

(2) File a written Response to the Notice within 20 days

(3) Complete the Case Management Form

You can find more detail about these steps below.

How do I know when my Response to the Notice is due?

You have until the 20th day after the Notice was served to file your Response. The exact due date will be listed in the Procedural Instructions issued by the General Counsel or Hearing Officer shortly after the Notice is served. If you do not get the Procedural Instructions within seven days after you receive the Notice, call the Board's offices at 215-686-9450.

How do I file my Response?

You can file by either email or mail. If you file by email, your Response must be an attachment in PDF format (not in the text body of an email) and must be **received** by the Board of Ethics by the due date. You must address your email to BOEGCStaff@phila.gov and you must copy (cc) the Executive Director (Shane.Creamer@phila.gov) on your email.

If you file by mail, your Response must be **received** by the Board of Ethics by the due date. If you file by mail, you must address your Response to:

City of Philadelphia Board of Ethics
Jordana Greenwald, General Counsel
1515 Arch Street, 18th floor
Philadelphia, PA 19102

If you file by mail, you must also send the Executive Director a copy of your Response.

It is very important that you file your Response by the due date. If you do not file a Response, you are giving up your right to have the Board of Ethics hear your side of the story. If you want to file a Response but need more time, see below for more information on how to request an extension.

How do I request a hearing?

You have a right to have a hearing. However, you must request a hearing in your Response if you want a hearing. To obtain a hearing, state clearly in your Response, "I request a hearing." **If you fail to request a hearing in your Response, a hearing will not be provided to you.** Without a hearing, you will not have an opportunity to present witnesses, documents, or other evidence to the Board.

What do I need to say in my Response?

If you file a Response, you must answer each numbered paragraph in the Notice of Administrative Enforcement Proceeding. Use paragraphs with the same numbers as those that appear in the Notice. For example, your response to paragraph 1 of the Notice should be numbered paragraph 1 of your Response.

You must admit or deny the statements in each paragraph of the Notice. If you admit some facts in a paragraph but deny others, you must explain which parts of the paragraph you admit and which you deny.

The chart below gives a more detailed example of how to answer paragraph-by-paragraph in your Response. You do not need to repeat the content of the Notice in your response – it is included in the chart for illustration only.

Notice	Response
1. Respondent was employed by the City for 25 years as a building inspector.	1. Admitted in part and denied in part. Respondent worked for the City for 25 years, including 22 years as a building inspector.
2. As a building inspector, Respondent's job included inspecting buildings in response to complaints.	2. Admitted.
3. Respondent inspected buildings owned by Respondent's spouse.	3. Denied.

You may also choose to include in your Response additional facts that you believe are helpful to your defense. This is not required, but if you believe important facts are missing from the Notice you may want to state them in your Response.

Preliminary Status Conference

The Hearing Officer will include a date, time, and location for a Preliminary Status Conference in the Procedural Instructions or a later order. This conference is the first opportunity for the Hearing Officer to explain the procedures for the Response and other aspects of this proceeding.

Both parties must attend the conference. That means you and your lawyer, if you have one, must attend. The Executive Director and the Enforcement Staff Attorney handling the matter must also attend. At least one member of General Counsel staff will also attend.

Case Management Form

Both you and the Executive Director are required to complete a Case Management Form. The form has instructions for what information to include and how to submit it to the Hearing Officer. The due date for the form will be set by the Hearing Officer during the Preliminary Status Conference. You will get a copy of the form before the Preliminary Status Conference.

What if I need more time?

If you need more time you can ask for an extension. Do not wait until the deadline to ask for more time. ***If you need more time, you must ask (1) in writing and (2) at least four days before the deadline.*** A request in writing can be an email or letter, but a letter may not get to the Hearing Officer before the deadline depending on when it is sent. If you do not have access to email, you should call the Board's offices to let the Hearing Officer and General Counsel staff know you are mailing a request for extra time. Your request must explain the reason that you need more time.

The Hearing Officer can only grant one extension on each deadline. The Hearing Officer is not required to grant extensions. They will only give extra time to either party if there is a good reason for the delay. Anything beyond the first request for more time must be approved by the Board Chair.

Do I need a lawyer?

If you have a lawyer or plan to obtain one, you may have that lawyer represent you in this proceeding. The Board, however, cannot provide you with a lawyer. While you are not required to have a lawyer and you may represent yourself, you are encouraged to consult with a lawyer, if possible. If at any point you obtain a lawyer to represent you, your lawyer must file an Entry of Appearance. A form Entry of Appearance will be attached to the Procedural Instructions or can be obtained from General Counsel staff.

What if I have questions?

If you have any questions about the Board's procedures or what is required of you, please contact the General Counsel staff at BOEGCStaff@phila.gov. This includes questions about deadlines, how to file documents, and general questions about how the administrative enforcement process works. If you do not have access to email, you may leave a message at 215-686-9450 and someone will follow up with you. Please remember this is only for procedural questions and not for questions or statements about the substance of the case.

It is very important to the fairness of this proceeding that any communication you have with the Hearing Officer or with the General Counsel staff about the substance of your case also include the Executive Director. Similarly, any communication that the Executive Director has with the Hearing Officer or with General Counsel staff must also include you.

Therefore, when you file your Response or submit your completed Case Management Form, you must send a copy to the Executive Director. The same rule applies to the Executive Director. This prevents either party from having private conversations about the substance of the case with the Hearing Officer or General Counsel staff. In addition, neither the Executive Director nor you may communicate directly with Board members about this case.

Where can I find more information about administrative enforcement proceedings?

Board Regulation No. 2 has more details about administrative enforcement proceedings and hearings. A copy will be attached to the Procedural Instructions issued by the Hearing Officer. You can also find Regulation No. 2 online at ethics.pub/Reg2.